

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
HON. YOLANDA V. TORRES

Date: August 24, 2026

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

1	Cseris Holdings, LLC. V. Quantum Cars Co 2025-01522163 Demurrer to Amended Complaint	Defendants Quantum Cars Co., and Lawrence Greaves' (erroneously sued as Lawrence Greves) Demurrer to Plaintiff's Second Amended Complaint is CONTINUED to October 19, 2026, at 1:45 p.m. in Department C15 as Defendants' counsel did not sufficiently meet and confer prior to filing the demurrer. The CMC set for the same date shall also be heard at 1:45 p.m. Before filing a demurrer, the moving party shall meet and confer with the opposing party in person, by telephone, or by video conference at least 5 days before a responsive pleading is due to see if a resolution can be reached on the objections to the pleading. (Code Civ. Pro., § 430.41, subds. (a), (a)(2).) Counsel for Defendants states he sent Plaintiff's counsel a letter setting forth alleged defects in the SAC on 6/24/26. (Kassan Decl., ¶ 4.) Counsel then participated in a phone call with Plaintiff's counsel who stated he would review the issues in the letter and consider a proposed stipulation. (Kassan Decl., ¶ 5.) Counsel for Defendants sent Plaintiff's counsel a redlined draft of a Third Amended Complaint and offered to stipulate to its filing. (Kassan
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		Decl., ¶ 5.) On 6/25/26, Plaintiff's counsel responded by email to state, "I disagree with your analysis. Please proceed with filing demurrer." (Kassan Decl., ¶ 6.) This does not satisfy the meet and confer requirement. The Court ORDERS the parties to meaningfully meet and confer in person, by telephone, or by video conference (email/letter is insufficient) concerning the issues raised in the demurrer. Defendants are to file and serve a declaration no later than nine (9) court days before the hearing date describing the parties' meet and confer efforts, and specifying what issues have been resolved, or remain for the Court to resolve. If no declaration is timely filed, the Court will construe this to mean that the issues have been resolved and will take the demurrer off-calendar. Moving party to give notice.
2	Schreiber v. Stewart 2024-01384707 Motion for Leave to File Amended Cross Complaint	Defendant/cross-complainant Nikki Jeannine Stewart's Motion for Leave to File First Amended Cross-Complaint is DENIED without prejudice. Legal standard "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading" (Code Civ. Proc., § 473, subd. (a)(1).) "Motions for leave to amend are directed to the sound discretion of the judge" (<i>Howard v. County of San Diego</i> (2010) 184 Cal.App.4th 1422, 1428 [citing Code Civ. Proc., § 473, subd. (a)(1).]) "[T]he court's discretion will usually be exercised liberally to permit amendment of the pleadings. The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (<i>Ibid.</i>, [citations omitted].) California Rules of Court, rule 3.1324, subdivision (a), provides that a motion to amend must: (1) Include a serially numbered copy of the proposed amended pleading; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

		California Rules of Court, rule 3.1324, subdivision (b), provides a motion to amend must be accompanied by a declaration setting forth the effect of the amendment, why it is necessary and proper, when facts giving rise to the amended allegations were discovered, and the reasons why the request for amendment was not made earlier. Stewart seeks an order granting leave to file a first amended cross-complaint to “clarify legal theories arising from the same operative facts.” (Mtn. at 4:25-26.) Specifically, Stewart seeks to “clarify[y] existing allegations regarding erosion, excavation, and destabilization of this hillside.” (Mtn. at 5:23-24.) Stewart contends there is no prejudice as the proposed amendment does not alter the nature of the action and the core evidence and witnesses remain the same. Plaintiff/cross-defendants contend Stewart does not comply with California Rules of Court, rule 3.1324, subdivision (b) and that the amendment materially expands the case making the failure to comply with rule 3.1324 consequential. Stewart’s declaration submitted in support of the motion does not comply with Rule 3.1324, subdivision (b). While Stewart states in the motion that the need for amendment “became apparent following further evaluation of the site conditions, including consultation and site review” (Mtn. at 7:4-9), its inclusion in the motion itself does not comply with Rule 3.1324. Nor does this provide the additional information required by Rule 3.1324, including why the request for amendment was not made earlier. While Stewart included a supplemental declaration in support of the reply, which Stewart contends complies with Rule 3.1324, doing so in the reply does not provide Plaintiff/cross-defendants the opportunity to respond to the new issues raised. (<i>American Drug Stores v. Stroh</i> (1992) 10 Cal.App.4th 1446, 1453 [“Points raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument.”])
3	L. v. Flores-Rivas 2022-01259553 Motion to Be Relieved as Counsel of Record OSC Re Dismissal on Settled Case	The motion of attorney Simah Aljabari from Ledezma Law, APLC to be relieved as counsel of record for defendant Felipe Rivas is GRANTED. Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362.

		Moving attorney is ORDERED to give notice to client, and file proof of service of the Court's order as entered. Withdrawal will be effective upon filing of proof of service of the order.
4	Rivas v. Hurtado 2021-01225380 Be Relieved as Counsel of Record OSC Re Dismissal on Settled Case	The motion of attorney Simah Aljabari from Ledezma Law, APLC to be relieved as counsel of record for plaintiff Felipe Rivas is GRANTED. Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362. Moving attorney is ORDERED to give notice to client, and file proof of service of the Court's order as entered. Withdrawal will be effective upon filing of proof of service of the order.
5	Diana Lynn Garbers, Trustee of Diana Lynn Garbers Trust of 1999 v. Fierro 2025-01552051 Motion for Preference CMC	Plaintiff Diana Lynn Garbers's as Trustee of the Diana Lynn Garbers Trust of 1999 Motion for Trial Preference is DENIED. "(a) A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: [¶] (1) The party has a substantial interest in the action as a whole. [¶] (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation." (§ 36(a).) Plaintiff's declaration fails to show her health is such that preference is necessary. She states due to her age "I am concerned about my ability to fully participate in and endure a prolonged litigation process." (Gabers Decl., ¶ 4.) However, Plaintiff provides no medical diagnosis which supports her concern. Additionally, counsel's declaration is insufficient for the same reason as it fails to provide a medical basis for his concern for Plaintiff's ability to participate in trial. (See <i>Fox v. Superior Court</i> (2018) 21 Cal.App.5th 529, 534-535.) Thus, Plaintiff has failed to show there is a good medical reason for concern her ability to participate in trial will be adversely affected if preference is not granted. Accordingly, Plaintiff's Motion is denied.
6	Clark v. Clark 2025-01530857 Motion for Reconsideration	Plaintiff Edward L. Clark, Jr.'s Motion for Reconsideration (ROA 148) is DENIED. Plaintiff moves for reconsideration of "a prior order from Judge Michael Strickroth denying ex parte application for an order granting a Temporary Restraining Order (TRO) pending its decision to review Defendants response to

	Order To Show Cause (OSC) why a preliminary injunction should not issue against Defendants Richard Grover and Deborah L Clark.” (Motion, p. 2:4-7.) Plaintiff seeks reconsideration pursuant to Code of Civil Procedure, section 1008. Section 1008, subdivision (a) provides: When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown. Here, Plaintiff’s motion is not accompanied by the required affidavit stating, “what application was made before, when and to what judge, what decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (See Code Civ. Proc., ¶ 1008, subd (a); see <i>Branner v. Regents of Univ. of Calif.</i> (2009) 175 Cal.App.4th 1043, 1048 [motion filed and served without supporting affidavit was invalid (affidavit filed later insufficient)].) The court declines Plaintiff’s suggestion that it reconsider on its own motion. Such a written suggestion is improper where the motion does not comply with section 1008 and the court need not rule on it. (See <i>Le Francois v. Goel</i> (2005) 35 Cal.4th 1094, 1108.) Even if it were proper, it is not clear which order Plaintiff seeks reconsideration of. In the motion, Plaintiff fails to provide the date the order was issued but appears to describe a 2/3/26 order issued by Judge Strickroth. However, in his reply Plaintiff argues for reconsideration of an order issued on 5/13/26 by Judge Oberholzer. (See Reply, p. 2:21-22.) Regarding timeliness of the motion, the 10-day limit does not apply where there is no notice of entry of order served. (<i>Novak v. Fay</i> (2015) 236 Cal.App.4th 329, 335-336.) Whether Plaintiff seeks reconsideration of the 2/3/26 order or the 5/13/26 order, there is no evidence that a notice of entry of either order was ever served. Defendant states that notice of ruling of the 5/13/26 order was mailed. However, Defendant provides no proof of such mailing. Further, the 2/3/26 order states “No further notice is ordered.”
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		The motion is denied. Defendant's request for sanctions is denied.
8	Smith v. Hyundai Motor America 2026-01560861 Motion to Compel Arbitration	Defendant Hyundai Motor America's Motion to Compel Arbitration is DENIED. Defendant seeks to compel Plaintiff Lisa Smith to arbitrate her claims against Defendant based on two arbitration provisions: (1) a provision contained in the "Owner's Handbook and Warranty Information (the Handbook); and (2) a provision contained in the "Bluelink Connected Services Agreement" (CSA). Defendant's request for judicial notice of the Complaint is granted although unnecessary. Owner's Handbook and Warranty Information The Handbook for Plaintiff's vehicle sets forth the details of Defendant's express warranty, and Plaintiff's claims in this action are based in part on the existence of this warranty. (Ameripour Decl., Ex. 3.) The provision also provides the FAA applies. (Ameripour Decl., Ex. 3, § 4, p. 14.) Under the FAA, the court must compel arbitration of claims covered by an enforceable arbitration agreement. (9 U.S.C. § 3.) The party seeking to compel arbitration has the burden of proving the existence of an agreement to arbitrate by a preponderance of the evidence. (<i>Johnson v. Walmart Inc.</i> (9th Cir. 2023) 57 F.4th 677, 681 (<i>Johnson</i>)). Importantly, " 'while doubts concerning the scope of an arbitration clause should be resolved in favor of arbitration, the presumption does not apply to disputes concerning whether an agreement to arbitrate has been made.' [Citations.]" (<i>Id.</i> at pp. 680-681.) " '[A]rbitration is strictly a matter of consent ... and thus is a way to resolve those disputes—but only those disputes—that the parties have agreed to submit to arbitration.' [Citation] (emphasis in original).... As 'arbitration is a matter of contract[,]' ... a party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.' [Citations.]" (<i>Id.</i> at 681.) To determine whether the parties have agreed to arbitrate a dispute, federal courts apply state-law principles of contract formation. (<i>Berman v. Freedom Financial Network, LLC</i> (9th Cir. 2022) 30 F.4th 849, 855.) To form a contract under California law, there must be mutual assent. (<i>Herzog v. Superior Court</i> (2024) 101 Cal.App.5th 1280, 1293-1294 (<i>Herzog</i>); <i>Long v. Provide Commerce, Inc.</i> (2016) 245 Cal.App.4th 855, 862 (<i>Long</i>)). " 'Mutual

	assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings. The parties' outward manifestations must show that the parties all agreed 'upon the same thing in the same sense.' If there is no evidence establishing a manifestation of assent to the 'same thing' by both parties, then there is no mutual consent to contract and no contract formation." (<i>Herzog</i>, at pp. 1293-1294.) A signed arbitration agreement is one manner of manifesting consent (see <i>Binder v. Aetna Life Ins. Co.</i> (1999) 75 Cal.App.4th 832, 850), but it is not the only manner. " '[I]t is not the presence or absence of a signature which is dispositive; it is the presence or absence of evidence of an agreement to arbitrate which matters.' [Citation.] Evidence confirming the existence of an agreement to arbitrate, despite an unsigned agreement, can be based, for example, on 'conduct from which one could imply either ratification or implied acceptance of such a provision.' " (<i>Serafin v. Balco Properties Ltd., LLC</i> (2015) 235 Cal.App.4th 165, 176.) For example, "[w]hen an employee continues his or her employment after notification that an agreement to arbitration is a condition of continued employment, that employee has impliedly consented to the arbitration agreement." (<i>Diaz v. Sohnen Enterprises</i> (2019) 34 Cal.App.5th 126, 130.) But because notice is the touchstone for assent to a contract, in order to establish mutual assent, there must be actual or constructive notice of the agreement. (<i>B.D. v. Blizzard Entertainment, Inc.</i> (2022) 76 Cal.App.5th 931, 944 (<i>Blizzard</i>); <i>Stover v. Experian Holdings, Inc.</i> (9th Cir. 2020) 978 F.3d 1082, 1086 ["notice--actual, inquiry, or constructive--is the touchstone for assent to a contract"]; see <i>Herzog, supra</i>, 101 Cal.App.5th at pp. 1293-1294.) "[I]n the absence of actual notice, a manifestation of assent may be inferred from the consumer's actions ... but any such action must indicate the parties' assent to the same thing, which occurs only when the [provider] puts the consumer on constructive notice of the contractual terms." (<i>Sellers v. JustAnswer LLC</i> (2021) 73 Cal.App.5th 444, 461 (<i>Sellers</i>), accord, <i>Herzog</i>, at p. 1294.) "[W]hether the terms appear on a physical piece of paper or a computer screen, 'California law is clear—"an offeree, regardless of apparent manifestation of his consent, is not bound by inconspicuous contractual provisions of which he was unaware, contained in a document whose contractual nature is not obvious." ' [Citation.]" (<i>Sellers, supra</i>, at p.
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461; accord, *Herzog*, supra, 101 Cal.App.5th at pp. 1293-1294; *Long*, supra, 245 Cal.App.4th at p. 862.)

Here, Plaintiff did not sign the Handbook as there is no signature page and states he does not recall being made aware of the Handbook or its contents upon leasing the vehicle. (Smith Decl., ¶¶ 4-7.) Thus, Defendant argues the arbitration provision in the Handbook is enforceable under the doctrine of equitable estoppel.

However, this instance is different from the numerous other cases where the court extended equitable estoppel to prevent a plaintiff from relying upon the terms of an agreement to assert his claims and then repudiating the arbitration clause in that agreement. (See *Goldman v. KPMG, LLP* (2009) 173 Cal.App.4th 209, 220.) The question here is whether the two parties to the arbitration provision in the Handbook mutually agreed to form an agreement. The mere fact that Plaintiff leased a vehicle with a warranty does not necessarily mean they assented to an arbitration agreement in the "owner's" handbook hidden in the glovebox of a car that Plaintiff had no occasion to discover or read until after Plaintiff leased it and became an "owner." (See *Windsor Mills, Inc. v. Collins & Aikman Corp.* (1972) 25 Cal.App.3d 987, 992.) "However, when the offeree does not know that a proposal has been made to him this objective standard does not apply." (*Id.* at p. 993.) Hence, "whether the terms appear on a physical piece of paper or a computer screen, 'California law is clear—"an offeree, regardless of apparent manifestation of his consent, is not bound by inconspicuous contractual provisions of which he was unaware, contained in a document whose contractual nature is not obvious." ' [Citation.]" (*Sellers, supra*, 73 Cal.App.5th at p. 461; accord, *Herzog, supra*, 101 Cal.App.5th at pp. 1293-1294; *Long, supra*, 245 Cal.App.4th at p. 862.)

The arbitration provision in the Handbook was not made obvious to Plaintiff and it is not obvious by the nature of the Handbook it is an agreement, let alone require the acceptance of an arbitration provision to lease the vehicle. While Plaintiff may be held to have accepted, by his conduct in leasing a vehicle covered by a warranty, the warranty-related terms the Handbook may contain, Plaintiff did not know and had no occasion to know that the Handbook also included an arbitration agreement—an agreement not incident to or engendered by a warranty, which required binding arbitration and waived their right to a jury trial—that would automatically apply without prior notice.

	As discussed above, notice is the touchstone for assent to a contract, and in order to establish mutual assent, there must be actual or constructive notice of the agreement. (See <i>Blizzard, supra</i>, 76 Cal.App.5th at p. 944; <i>Stover v. Experian Holdings, Inc., supra</i>, 978 F.3d at p. 1086; see <i>Herzog, supra</i>, 101 Cal.App.5th at pp. 1293-1294.) “[I]n the absence of actual notice, a manifestation of assent may be inferred from the consumer’s actions ... but any such action must indicate the parties’ assent to the same thing, which occurs only when the [provider] puts the consumer on constructive notice of the contractual terms.” (<i>Sellers, supra</i>, 73 Cal.App.5th at p. 461; accord, <i>Herzog</i>, at p. 1294.) No such notice has been shown here. Thus, regardless of Plaintiff’s apparent manifestation of consent by using the vehicle and taking it in for repairs, and the dealership’s misleading explanation of arbitration, Plaintiff is “not bound by [the subject] inconspicuous contractual provisions of which [he] [was] unaware, contained in a document whose contractual nature is not obvious.” ‘ [Citation.]’ (<i>Sellers, supra</i>, at p. 461; <i>Herzog, supra</i>, 101 Cal.App.5th at pp. 1293-1294; <i>Long, supra</i>, 245 Cal.App.4th at p. 862.) Thus, Defendant has failed to demonstrate the arbitration provision in the Handbook is a valid agreement to arbitrate. Connected Services Agreement The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. (<i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565.) The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. (<i>Id.</i>) The court resolves the parties’ dispute regarding the existence of the arbitration agreement using a three-step burden-shifting process. (<i>Espejo v. Southern California Permanente Medical Group</i> (2016) 246 Cal.App.4th 1047, 1056.) “The arbitration proponent must first recite verbatim, or provide a copy of, the alleged agreement. A movant can bear this initial burden by attaching a copy of the arbitration agreement purportedly bearing the opposing party’s signature. At this step, a movant need not follow the normal procedures of document authentication’ and need only ‘allege the existence of an agreement and support the allegation as provided in rule 3.1330. If the movant bears its initial burden, the burden
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shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence—in this instance, by disputing the authenticity of their signatures. To bear this burden, the arbitration opponent must offer admissible evidence creating a factual dispute as to the authenticity of their signatures. The opponent need not prove that his or her purported signature is not authentic, but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent, who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature.” (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755.)

Defendant has satisfied the first step by demonstrating Plaintiff enrolled in Bluelink which requires agreeing to the Connected Services Agreement (CSA) which also contains an arbitration agreement.

“[A] gateway dispute about whether the parties are bound by a given arbitration clause raises a ‘question of arbitrability’ for a court to decide.” (*Howsam v. Dean Witter Reynolds, Inc.* (2002) 537 U.S. 79, 84.) “However broad may be the terms of a contract, it extends only to those things concerning which it appears that the parties intended to contract.” (Civ.C. § 1648.) The general rule is that arbitration will be ordered “unless it can be said with assurance that the arbitration clause is not susceptible of an interpretation that covers the asserted dispute.” (*Pacific Invest. Co. v. Townsend* (1976) 58 Cal.App.3d 1, 9-10.)

The arbitration agreement in the CSA is broad and covers any and all disputes between Defendant and Plaintiff “arising out of or relating to this Agreement, Connected Services, Connected Services Systems, Service Plans, your Vehicle, use of the sites, or products, services, or programs you purchase, enroll in or seek product/service support for, whether you are a Visitor or Customer, via the sites or through mobile application, except any disputes or claims which under governing law are not subject to arbitration, to the maximum extent permitted by applicable law. This agreement to arbitrate is intended to be broadly interpreted and to make all disputes and claims between us subject to arbitration to the fullest extent permitted by law. However, any dispute you or we may have relating to copyrights or other intellectual property shall not be governed by this agreement to arbitrate. For the avoidance of doubt, this means that any claims you or we may have relating to intellectual property rights against the other, including injunctive and other relief sought, may be brought in a court of competent jurisdiction.” (Rao Decl., Ex. 2, § 14(a).)

		While the arbitration agreement purports to cover any and all disputes between the parties regarding “[plaintiff’s] Vehicle,” the scope of an arbitration clause “turns on whether the ... claims are ‘rooted’ in the contractual relationship between the parties....” (<i>Ahern v. Asset Management Consultants, Inc.</i> (2022) 74 Cal.App.5th 675, 692.) In other words, to be arbitrable, the subject claims must have their roots in the relationship between the parties that was created by the contract containing the arbitration provision. (<i>Id.</i> at pp. 692-693; <i>Rice v. Downs</i> (2016) 248 Cal.App.4th 175, 188.) “[E]ven under a very broad arbitration provision, such as any controversy or claim arising out of or relating to this agreement, the subject claims must have their roots in the relationship between the parties which was created by the contract before they can be deemed to fall within the scope of the arbitration provision.” (<i>Rice v. Downs, supra</i>, 248 Cal.App.4th at p. 188.) The CSA governs the Defendant’s Connected Services technology. “These Terms and Conditions are the agreement between us regarding our provision of Connected Services to you (collectively referred to herein as ‘Agreement’ or ‘Connected Services Agreement’).” (Rao Decl., Ex. B.) The CSA defines Connected Services as the vehicle technology and service functions received as part of the enrollment in a Bluelink or Genesis Connected Services subscription, including but not limited to [¶] · Remote Service Activation [¶] · Stolen Vehicle Recovery [¶] · Enhanced Roadside Assistance [¶] · SOS/ACN [¶] · POI Send-to-Car and Destination Search [¶] · Digital Key 2.0 [¶] · Verizon Hotspot [¶] · Over the Air software updates[.]” (Rao Decl., Ex. B.) The Complaint alleges defects related to the Vehicle’s transmission. (Compl., ¶¶ 10, 45.) Thus, the Connected Services are not at issue in this case and Plaintiff’s claims do not arise out of the relationship created by the CSA. Therefore, the arbitration provision in the CSA does not cover the defects claimed in the Complaint and arbitration should not be compelled under the CSA. Accordingly, Defendant’s Motion is denied.
9	Santoro v. Smith 2023-01331783 Motion to Dismiss CMC OSC for FTA	Defendant Craig Thomas’s Motion to Dismiss is GRANTED. Defendant Craig Thomas, an individual and as Successor In Interest for Chris Santoro and Trustee of Carpe Vitam Trust, moves to dismiss this action pursuant to Code of Civil Procedure sections 581 and 583.410, et seq. Section 581, subdivision (f)(4), provides: “The court may dismiss the complaint as to that defendant when: . . . [¶] (4) After

	OSC re FTC with CRC 3.110 (b) OSC for FTC with CMC Statement	a motion to strike the whole of a complaint or portion thereof is granted with leave to amend the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal.” Section 583.410, subdivision (a), provides: “The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case.” Section 583.420, subdivision (a), provides, in relevant part: (a) The court may not dismiss an action pursuant to this article for delay in prosecution except after one of the following conditions has occurred: (1) Service is not made within two years after the action is commenced against the defendant. (2) The action is not brought to trial within the following times: (A) Three years after the action is commenced against the defendant unless otherwise prescribed by rule under subparagraph (B). (B) Two years after the action is commenced against the defendant if the Judicial Council by rule adopted pursuant to Section 583.410 so prescribes for the court because of the condition of the court calendar or for other reasons affecting the conduct of litigation or the administration of justice. (Code Civ. Proc., § 583.420, subd. (a)(1), (2).) Here, on 2/2/26, the court granted Defendant’s Motion to Strike the Complaint with 20 days leave to amend. To date, Plaintiff has not filed an amended Complaint. The deadline to do so has long since passed. Additionally, Plaintiff commenced this action on 3/7/23. Therefore, it has been pending for over three years and has not been brought to trial. Based on the foregoing, the motion is granted.
10	Santoro v. Thomas 2023-01313129 Motion to Dismiss CMC OSC for FTA OSC re FTC with CRC 3.110 (b)	Defendant Craig Thomas’s Motion to Dismiss is GRANTED. Defendant Craig Thomas, an individual and as Successor In Interest for Chris Santoro and Trustee of Carpe Vitam Trust, moves to dismiss this action pursuant to Code of Civil Procedure sections 581 and 583.410, et seq. Section 581, subdivision (f)(4), provides: “The court may dismiss the complaint as to that defendant when: . . . [¶] (4) After a motion to strike the whole of a complaint or portion thereof is granted with leave to amend the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal.”

	OSC for FTC with CMC Statement	Section 583.410, subdivision (a), provides: "The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case." Section 583.420, subdivision (a), provides, in relevant part: (a) The court may not dismiss an action pursuant to this article for delay in prosecution except after one of the following conditions has occurred: (1) Service is not made within two years after the action is commenced against the defendant. (2) The action is not brought to trial within the following times: (A) Three years after the action is commenced against the defendant unless otherwise prescribed by rule under subparagraph (B). (B) Two years after the action is commenced against the defendant if the Judicial Council by rule adopted pursuant to Section 583.410 so prescribes for the court because of the condition of the court calendar or for other reasons affecting the conduct of litigation or the administration of justice. (Code Civ. Proc., § 583.420, subd. (a)(1), (2).) Here, on 2/2/26, the court granted Defendant's Motion to Strike the Complaint with 20 days leave to amend. To date, Plaintiff has not filed an amended Complaint. The deadline to do so has long since passed. Additionally, Plaintiff commenced this action on 3/13/23. Therefore, it has been pending for over three years and has not been brought to trial. Based on the foregoing, the motion is granted
11	American Built Science, LLC v. Lunarspace, Inc. 2026-01545490 Motion for Entry of Judgment CMC	Plaintiffs American Built Science, LLC and Theisscare, LLC's Motion for Entry of Default Judgment is CONTINUED to NOVEMBER 9, 2026, AT 1:45 P.M. Plaintiffs are ORDERED to file the mandatory CIV-100 form as required by California Rules of Court rule 3.1800(a) within 10 days of this order.
13	Lenahan v. Volkswagen Group of America, Inc. Motion for Attorney fees	Plaintiff Jaime Lenahan's motion for an award of attorneys' fees, costs and expenses is GRANTED as modified. Entitlement to Attorneys' Fees: Plaintiff moves for attorneys' fees pursuant to Civil Code section 1794, subdivision (d). On March 25, 2026, Plaintiff accepted Defendant Volkswagen Group of America, Inc.'s

	Code of Civil Procedure section 998 Offer. The parties do not dispute that Plaintiff is the prevailing party entitled to attorneys' fees. Amount of Attorneys' Fees: "[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095.) Plaintiff seeks an award of attorneys' fees pursuant to section 1794, subdivision (d) under the lodestar method in the amount of \$21,611 and costs and expenses of \$650.81. Defendant challenges both the hourly rate charged, and the total number of billable hours claimed by Plaintiff's attorney. The hourly rates of Chad David (\$795) is reduced to \$450. Defendant challenges Plaintiff's request for 6.3 hours (\$4,027.50) related to preparing Plaintiff's Fee Motion and an additional 5 hours (\$3,975) for anticipated billing to review Defendant's Opposition, draft a Reply, and attend the hearing. The amount requested is excessive and reduced by 4.5 hours at \$795 (\$3,577.50) and 1.5 hours at \$250 (\$375). Defendant also challenges Plaintiff's request for 3.4 hours at \$795 for reviewing file, researching warranty, NHTSA database and repairs, drafting complaint and supporting documents. The hours requested with respect to preparing a form complaint is excessive and reduced by 1.7 hours at \$795 (\$1,351.50.) Further, it is unreasonable to have Defendant pay for rejected filings. Therefore, the fees charges for 0.2 hours at \$250 (\$50) on 1/21/26 and 0.3 hours at \$250 for \$75 are stricken. Defendant challenges the hours expended by Plaintiff's counsel in preparing discovery responses as unnecessary. Defendant propounded written discovery on Plaintiff on February 27, 2026, with responses due April 1, 2026. It was therefore reasonable for Plaintiff to prepare discovery responses even though they were never served because the case settled before the discovery responses were due. The request to reduce fees incurred in discovery is denied. Defendant also challenges \$60 filing fee for the fees motion charged by Plaintiff as attorneys' fees on 5/19/26. The filing fee is properly charged as costs. Therefore, the amount of \$60 in filing fee is stricken.
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		Lastly, Defendant challenges Plaintiff's request for 4.4 hours at \$250 for routine surrender process. The amount is excessive and reduced to 2.2 hours at \$250 (\$550.) Based on the foregoing the court awards fees of \$11,760. Costs: Defendant does not challenge any costs sought by Plaintiff. Therefore, the costs are awarded in the amount of \$650.81. Plaintiff to give notice.
14	Bailor v. Dermlite. LLC 2023-01309601 Motion to for summary judgment/adjudication	Defendants' motion for summary judgment is DENIED. Defendants' motion for summary adjudication is GRANTED in part as to the third and fourth causes of action and DENIED as to the remaining causes of action. Defendants Dermlite LLC, John Bottjer, Thorsten Trotzenberg, and Nizar Mullani (collectively, "Moving Defendants") move for summary judgment or, in the alternative, summary adjudication of each cause of action of the Second Amended Complaint ("SAC"). Defendants' request for judicial notice of the SAC and the court's ruling on defendant Jody Katz's motion for summary judgment or, in the alternative, summary adjudication is granted. (See Evid. Code, § 452, subd. (d).) On 12/18/24, plaintiff Ryan Bailor filed the operative SAC against Moving Defendants as well as defendants Katz and Rosa Torres alleging eight causes of action for: (1) wrongful termination in violation of public policy; (2) retaliation; (3) employment discrimination based upon gender; (4) hostile work environment and harassment in the workplace; (5) intentional infliction of emotional distress; (6) negligent supervision and retention; (7) negligence; and (8) breach of contract. On 11/3/25, the court granted defendant Katz's motion for summary judgment or, in the alternative, summary adjudication. Legal Standard "The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law. That is because of the general principle that

	a party who seeks a court's action in his favor bears the burden of persuasion thereon. (See Evid. Code, § 500.) There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850 [fn. omitted]; Code Civ. Proc., § 437c, subd. 437c, subd. (c).) Section 437c, subdivision (f)(1) provides as follows: A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Section 437c, subdivision (p) provides as follows: (1) A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. (2) A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the
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	cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. In ruling on a motion for summary judgment or summary adjudication, the court must "consider all of the evidence" and all of the "inferences" reasonably drawn therefrom [citing Code Civ. Proc., § 437c, subd. (c)] and must view the evidence and inferences "in the light most favorable to the opposing party." (<i>Aguilar, supra</i>, 25 Cal.4th at p. 843.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment or adjudication, and all evidentiary conflicts are to be resolved against the moving party. (<i>McCabe v. American Honda Motor Corp.</i> (2002) 100 Cal.App.4th 1111, 1119.) The moving party's papers are to be strictly construed, while the opposing party's papers are to be liberally construed. (<i>Committee to Save Beverly Highland Homes Ass'n v. Beverly Highland</i> (2001) 92 Cal.App.4th 1247, 1260.) First Cause of Action - Wrongful Termination in Violation of Public Policy The first cause of action is alleged against Dermlite only. In the first cause of action, Plaintiff alleges that on 11/17/21, Dermlite terminated him because of discrimination based on gender, i.e. "anti-white-male bias", among other unlawful acts by Defendants, in violation of public policy. (See SAC, ¶¶ 57, 59.) Plaintiff alleges he was terminated after defendant Bottjer had engaged in misconduct towards defendant Torres, been blackmailed by her, and promised her he would fire Plaintiff in support of defendant Torres' anti-white male prejudices, to protect his own reputation from the truth coming out. Defendant Bottjer did not act alone but only after having obtained approval of his plan by defendants Mulani and Trotzenberg. (SAC, ¶ 58.) Dermlite supported defendant Torres' harassment of other white males and although they reported her harassment to defendant Bottjer and others, Dermlite never took any efforts to protect white males who defendant Torres targeted, such
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	as Plaintiff. Dermlite adopted defendant Torres' anti-white-male bias and supported her in her efforts to harass. (SAC, ¶ 59.) Plaintiff alleges this anti-white-male bias was the sole reason for terminating him and there were no facts in existence to justify firing him. (SAC, ¶ 60.) A claim for wrongful discharge in violation of public policy requires proof (1) an employer-employee relationship, (2) the employer terminated the plaintiff's employment, (3) a violation of public policy substantially motivated the discharge, and (4) the discharge caused the plaintiff harm. (<i>Diego v. Pilgrim United Church of Christ</i> (2014) 231 Cal.App.4th 913, 920.) A wrongful termination claim must be based on a policy carefully tethered to a constitutional or statutory provision. (Id. at p. 921.) A claim for wrongful termination in violation of public policy based on retaliation or discrimination is evaluated under a burden-shifting analysis under <i>McDonnell Douglas Corp. v. Green</i> (1973) 411 U.S. 792. (See <i>Diego, supra</i>, 231 Cal.App.4th at p. 930; see also <i>Guz v. Bechtel Nat. Inc.</i> (2000) 24 Cal.4th 317, 353 [discrimination claim evaluated under the <i>McDonnell Douglas</i> burden-shifting analysis].) Under the burden-shifting analysis, the plaintiff must first show (1) he or she engaged in a protected activity, (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action. Once the plaintiff establishes a prima facie case exists, the burden shifts to the employer to establish a legitimate, nonretaliatory or nondiscriminatory reason for the adverse employment action. If the employer establishes a legitimate reason for the adverse employment action, the burden shifts back to the employee to establish the employer's proffered reasons was a pretext or provide additional evidence of discriminatory motive. (<i>Diego, supra</i>, 231 Cal.App.4th at p. 930; <i>Guz, supra</i>, 24 Cal.4th at p. 353.) Dermlite argues Plaintiff cannot establish wrongful termination in violation of public policy because Defendants relied on Katz's investigation when making the decision to terminate and the Court already decided that Katz's investigation was not outrageous and not intended to cause Plaintiff to suffer emotional distress. Relying on <i>Jameson v. Pacific Gas & Electric Co.</i> (2017) 16 Cal.App.5th 901, Dermlite contends employers can
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	rely on adequate independent investigations to seek a judgment as a matter of law. Dermlite's argument is based on the following six undisputed facts: Plaintiff testified that he was not sure if he wanted defendant Torres to lose her job due to his accusations. (UMF 1.) Plaintiff further testified that, after he complained about Torres' behavior, he believes that Torres was placed on leave for a period, and that he and Torres received an email from management instructing the two to stay away from each other. (UMF 2.) Plaintiff testified to believing that an independent investigation was necessary after Torres accused him of sexual harassment. (UMF 3.) Plaintiff testified to recalling that Katz interviewed approximately 17 employees and Plaintiff's former employer, Applied Medical, as part of her investigation. (UMF 4.) Plaintiff testified to telling Katz about Torres' harassment of him, why he believed she was retaliating against him, why he believed that Torres would be punished, possibly terminated, due to his complaints about her, and his belief that Katz would follow up with him as part of her investigation. (UMF 5.) Plaintiff testified that he emailed Katz thereafter indicating that he was willing to assist her investigation, but he declined to request a second interview with her. (UMF 6.) However, Defendants have not submitted any evidence that Dermlite relied on defendant Katz's investigation or her ultimate conclusions and recommendations. For example, Dermlite has not provided any declarations or deposition testimony from anyone involved in the decision to terminate Plaintiff stating they relied on Katz's investigation, conclusions or recommendations when making the decision to terminate Plaintiff. Plaintiff's testimony does not establish whether Dermlite relied on defendant Katz. Dermlite's reliance on Jameson is misplaced because the employee in Jameson conceded he was fired on the basis of the report at issue in that case. (Id. p. 910.) The employee instead argued that a jury could reasonably find the employer's "reliance on it was not reasonable or in good faith." (<i>Ibid.</i>) Dermlite's reliance on this court's ruling on defendant Katz's motion for summary judgment is misplaced as well. First, Katz's motion focused on Katz's process in conducting the investigation, not Katz's ultimate conclusions and recommendations, if any. Second, in
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	granting the motion, this court only found that (1) Katz met her initial burden of showing Plaintiff could not establish outrageous conduct on her part, an element of Intentional Infliction of Emotional Distress, and (2) Plaintiff failed establish a triable issue of material fact. The court made no findings regarding Dermlite's ultimate reliance on Katz's investigation. Therefore, Dermlite has not met its initial burden. Accordingly, the motion for summary adjudication of the first cause of action is denied. Second Cause of Action - Retaliation The second cause of action is alleged against Dermlite only. In the second cause of action, Plaintiff alleges he was retaliated against because he complained about Torres' harassment. (SAC, ¶ 66.) He also alleges the rationale for firing him was to make an example of him so other white males would be intimidated from complaining against Torres and to avoid Bottjer's inappropriate treatment of Torres from coming to light. (SAC, ¶ 66.) "[T]o establish a prima facie case of retaliation under the FEHA, a plaintiff must show (1) he or she engaged in a protected activity, (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action." (<i>Yanowitz v. L'Oreal USA, Inc.</i> (2005) 36 Cal.4th 1028, 1042.) The McDonnell Douglas burden-shifting analysis discussed above applies to FEHA retaliation claims. (<i>Ibid.</i>) Dermlite contends argues Plaintiff cannot establish a causal link between his protected activity and his termination because Defendants relied on Katz's findings and the Court already ruled that she did not conduct an outrageous investigation intended to cause Plaintiff emotional distress, and therefore Plaintiff cannot establish this cause of action.. Dermlite relies on the same six undisputed facts and evidence here that it relied on with respect to the first cause of action. As discussed above, Dermlite has not submitted evidence that Defendants relied on Katz's investigation, conclusions, or recommendations when deciding to terminate Plaintiff.
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	Therefore, Dermlite has not met its initial burden. Accordingly, the motion for summary adjudication of the second cause of action is denied. Third Cause of Action - Employment Discrimination Based Upon Gender The third cause of action for employment discrimination based upon gender is alleged against Dermlite only. In the third cause of action, Plaintiff alleges his male gender was a factor in Defendants' actions, including terminating him as discussed above. (SAC, ¶¶ 75-76.) To establish a prima facie case of discrimination, "[g]enerally, a plaintiff must provide evidence that (1) he was a member of a protected class, (2) he was qualified for the position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive." (<i>Guz v. Bechtel Nat. Inc.</i> (2000) 24 Cal.4th 317, 355.) The <i>McDonnell Douglas</i> burden-shifting analysis discussed above applies to FEHA retaliation claims. (<i>Ibid.</i>) Dermlite argues Plaintiff's claim of employment discrimination based upon gender fails as a matter of law because Defendants took affirmative steps to address Plaintiff's complaints, by Plaintiff's own admission, before arriving at the decision to terminate based on Katz's counsel, which the Court already ruled was not outrageous and not intended to cause Plaintiff emotional distress. Dermlite relies on the same six undisputed facts and evidence to support this argument. However, Dermlite has not submitted evidence that Defendants relied on Katz's investigation, conclusions, or recommendations. Dermlite also argues it can conclusively rebut the presumption of discrimination because Defendants took action to punish Torres and to keep Plaintiff and Torres separated after he complained about her before Katz was retained. (UMF No. 2.) Dermlite contends this suggests Defendants did not have a gender-based preference for
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	Torres. The court agrees. Therefore, Dermlite has met its initial burden. Plaintiff has not filed an opposition. Accordingly, the motion for summary adjudication of the third cause of action is granted. Fourth Cause of Action - Hostile Work Environment and Harassment in the Workplace The fourth cause of action for hostile work environment and harassment in the workplace is alleged against all Moving Defendants. To establish a prima facie case of a hostile work environment, a plaintiff must prove (1) her/she is a member of a protected class; (2) he/she was subjected to unwelcome harassment; (3) the harassment was based on the plaintiff's membership of a protected class; (4) the harassment unreasonably interfered with the plaintiff's work performance by creating an intimidating, hostile, or offensive work environment; and (5) defendants are liable for the harassment. (<i>Ortiz v. Dameron Hospital Association</i> (2019) 37 Cal.App.5th 568, 581). (<i>Martin v. Board of Trustees of California State University</i> (2023) 97 Cal.App.5th 149, 170.) "The law prohibiting harassment is violated when the workplace is permeated with discriminatory intimation, ridicule and insult that is sufficiently severe or pervasive to alter the conditions of the victim's employment and create an abusive working environment." (<i>Ibid.</i>) An employer is liable only "if the entity, or its agents or supervisors, knows or should have known of this conduct and fails to take immediate and appropriate corrective action." (<i>Ibid.</i>) Defendants argue Plaintiff cannot establish they knew or should have known of the alleged harassment and failed to take action. Plaintiff testified (1) that, after he complained about Torres' behavior, he believes that Torres was placed on leave for a period, and that he and Torres received an email from management instructing the two to stay away from each other (UMF 2); (2) he believed an independent investigation was necessary after Torres accused him of sexual harassment (UMF 3); (3) Katz interviewed approximately 17 employees and Plaintiff's former employer as part of her investigation (UMF 4); and (4) he told Katz about Torres' harassment of him, why he believed she was retaliating against him, why he believed that Torres would be punished, possibly
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	terminated, due to his complaints about her, and his belief that Katz would follow up with him as part of her investigation (UMF 5). Thus, by Plaintiff's own admissions, Defendants took action to address Torres' potentially harassing conduct. Defendants have met their initial burden. Plaintiff has not filed an opposition. Therefore, the motion for summary adjudication of the fourth cause of action is granted. Fifth Cause of Action - Intentional Infliction of Emotional Distress The fifth cause of action for intentional infliction of emotional distress is allege against all Moving defendants. "The elements of the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community. The defendant must have engaged in conduct intended to inflict injury or engaged in with the realization that injury will result. It is not enough that the conduct be intentional and outrageous. It must be conduct directed at the plaintiff, or occur in the presence of a plaintiff of whom the defendant is aware." (<i>Christensen v. Superior Court</i> (1991) 54 Cal.3d 868, 903.) "Regarding emotional distress, the trial court initially determines whether a defendant's conduct may reasonably be regarded as so extreme and outrageous as to permit recovery." (<i>Plotnik v. Meihaus</i> (2012) 208 Cal.App.4th 1590, 1614.) Only where reasonable minds can differ, does the jury determine whether the conduct has been extreme and outrageous to result in liability. (<i>Ibid.</i>) "Otherwise stated, the court determines whether severe emotional distress can be found; the jury determines whether on the evidence it has, in fact, existed." (<i>Ibid.</i>)
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	Defendants argue Plaintiff cannot establish that the alleged conduct caused Plaintiff emotional distress because Plaintiff admitted that Defendants needed to retain an independent investigator, i.e. Katz, to advise on the situation at hand, and Defendants relied on Katz's counsel, and the court already ruled that Katz's investigation was not outrageous or intended to cause Plaintiff's emotional distress. However, Defendants have not submitted evidence that they relied on Katz's investigation, conclusions, or recommendations. Therefore, Defendants have not met their initial burden. Accordingly, the motion for summary adjudication of the fifth cause of action is denied. Sixth and Seventh Causes of Action - Negligent Supervision and Retention, and Negligence The sixth cause of action for negligent supervision and retention is alleged against Dermlite only. The seventh cause of action for negligence is alleged against all Moving Defendants. Defendants argue Plaintiff cannot establish a causal connection between Defendants' alleged mistreatment of him and the harm he alleges he suffered, namely his unjust termination, because Defendants relied on Katz's counsel when making such decision. However, Defendants have not submitted evidence that they relied on Katz's investigation, conclusions, or recommendations. Therefore, Defendants have not met their initial burden. Accordingly, the motion for summary adjudication of the sixth and seventh causes of action is denied. Eighth Cause of Action - Breach of Contract The eighth cause of action for breach of contract is alleged against all Moving Defendants. In the eighth cause of action, Plaintiff alleges an implied-in-fact contract between Plaintiff and Defendants, whereby Plaintiff could be terminated only upon just cause and due diligence for determining that just cause. (SAC, ¶ 122.) Plaintiff alleges Defendant breached the contract by conducting a sham investigation, placing Plaintiff on administrative leave, terminating him, and disparaging him to third parties. (SAC, ¶ 126.)
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	"[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (<i>Coyote Aviation Corp. v. City of Redlands</i> (2025) 111 Cal.App.5th 955, 973; Civ. Code § 1550.) Defendants argue Plaintiff cannot establish they breached the alleged contract because Plaintiff testified he recalls Defendants taking action to punish Torres and keep Plaintiff and Torres separated after he complained about her before Katz was retained, and Defendants' reliance on Katz led them to terminate Plaintiff with just cause. However, Defendants have not submitted evidence that they relied on Katz's investigation, conclusions, or recommendations. Therefore, Defendants have not met their initial burden. Accordingly, the motion for summary adjudication of the eighth cause of action is denied.
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